

PLE5019: CRIMINAL LITIGATION PRACTICE

Effective Term

Semester A 2025/26

Part I Course Overview

Course Title

Criminal Litigation Practice

Subject Code

PLE - Professional Legal Education

Course Number

5019

Academic Unit

School of Law (FL)

College/School

School of Law (FL)

Course Duration

One Semester

Credit Units

3

Level

P5, P6 - Postgraduate Degree

Medium of Instruction

English

Medium of Assessment

English

Prerequisites

Nil

Precursors

Nil

Equivalent Courses

Nil

Exclusive Courses

Nil

Part II Course Details

Abstract

This course aims to prepare students to begin the practice of criminal litigation.

Course Intended Learning Outcomes (CILOs)

CILOs		Weighting (if app.)	DEC-A1	DEC-A2	DEC-A3
1	Explaining the overall structure and applying the main principles of criminal litigation practice to resolve real life problems and challenges that occur in criminal litigation practice.		x	x	
2	Engaging in a range of tasks found in real life practice in criminal matters.		x	x	
3	Engaging in basic and useful skills required of lawyers in criminal litigation practice.		x	x	x
4	Explaining and discussing with a client their analysis, giving advice on some basic criminal litigation situations and ethical issues that may arise.		x	x	x
5	Identifying new developments in areas of the law, such as in the use of evidence.		x	x	

A1: Attitude

Develop an attitude of discovery/innovation/creativity, as demonstrated by students possessing a strong sense of curiosity, asking questions actively, challenging assumptions or engaging in inquiry together with teachers.

A2: Ability

Develop the ability/skill needed to discover/innovate/create, as demonstrated by students possessing critical thinking skills to assess ideas, acquiring research skills, synthesizing knowledge across disciplines or applying academic knowledge to real-life problems.

A3: Accomplishments

Demonstrate accomplishment of discovery/innovation/creativity through producing /constructing creative works/new artefacts, effective solutions to real-life problems or new processes.

Learning and Teaching Activities (LTAs)

LTAs		Brief Description	CILO No.	Hours/week (if applicable)
1	1	- In Large Groups, students will engage and deal with the specific stages, from the beginning to the end of a Criminal Litigation process. Furthermore, in Large Groups, students will also participate in demonstrations conducted. - In Small Groups, students will conduct simulated practice based role plays of different stages of the Criminal Litigation process, whereby they will give advice based on the situations encountered with. Students will also engage in group discussion, guided by the tutor to consolidate their learning and after the discussion, students will draft letters of advice, finalize a set of Admitted Facts and give advice on sentencing. Students will also individually draft an advice on appeal. Furthermore, students will make bail applications and pleas in mitigation and will be given feedback on their performances.	1, 2, 3, 4, 5	

Assessment Tasks / Activities (ATs)

ATs		CILO No.	Weighting (%)	Remarks ("- " for nil entry)	Allow Use of GenAI?
1	Mid-term assessment	2, 3	20	The use of Generative AI tools is not allowed.	No

Continuous Assessment (%)

20

Examination (%)

80

Examination Duration (Hours)

3

Minimum Continuous Assessment Passing Requirement (%)

50

Minimum Examination Passing Requirement (%)

50

Additional Information for ATs

Final examination: CILO No. 1,4,5.

The use of Generative AI tools is not allowed.

Assessment Rubrics (AR)

Assessment Task

Mid Term Coursework Assessment

Criterion

To pass the Mid Term Coursework Assessment students must obtain a mark of 50%.

To pass the Examination at the end of Semester B students must obtain a mark of 50%.

In order to pass this course, students have to pass both the Mid Term Coursework Assessment and the Examination at the end of Semester B.

Excellent

(A+, A, A-) The work meets the client' s needs in all respects, evidenced by:

- a superior grasp of the issues and subject matter
- good organization
- a capacity to analyze and synthesize
- possession of an extensive knowledge base
- a superior use of lawyer skills.

Good

(B+, B, B-) The work meets the client' s needs in most respects, evidenced by:

- a strong grasp of the issues and subject matter
- some critical and analytical ability
- an understanding of the applicable law and procedures
- a good use of lawyer skills.

Fair

(C+, C, C-*) The work meets the client' s main needs, evidenced by:

- an adequate grasp of the issues and subject matter
- an ability to develop solutions to the client' s problems
- a basic use of lawyer skills.

Marginal

(D*)

Failure

(F) The work does not meet the client' s needs, evidenced by little or an insufficient:

- grasp of the issues and subject matter
- critical and analytical ability
- understanding of the applicable law and procedures.

Assessment Task

Examination at the end of Semester B

Criterion

To pass the Mid Term Coursework Assessment students must obtain a mark of 50%.

To pass the Examination at the end of Semester B students must obtain a mark of 50%.

In order to pass this course, students have to pass both the Mid Term Coursework Assessment and the Examination at the end of Semester B.

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Additional Information for AR

* Note: The University's grades C- and D are not used in the PCLL.

Part III Other Information

Keyword Syllabus

The conduct of criminal cases in the Magistrates' Court; District Court and High Court; police powers, process to compel appearance; formulation and amendment of charges; bail; transfers and committal proceedings; discovery; trial; juries; sentencing; costs; appeals.

Reading List

Compulsory Readings

Title	
1	The Criminal Litigation Practice Deskbook
2	Some Ordinances and Subsidiary legislation will need to be downloaded as well; this will be indicated in the Deskbook.
3	Knight and Upham, 'Criminal Litigation' (Legal Practice Manual) Second Edition, Thomson, Sweet & Maxwell 2005 reprint.
4	Simon Young 'The Essential Statutes on HK Criminal Law and Procedure 2008/9 Lexis Nexis
5	Useful for reminding about the basics: Amanda Whitfort 'Criminal Procedure in HK - A Guide for Students and Practitioners' Lexis Nexis 2006

Additional Readings

Title	
1	Bilingual Laws Information System - Hong Kong Ordinances and Subsidiary Legislation (http://www.legislation.gov.hk/eng/home.htm)
2	Lexis and/or Westlaw - available through "Electronic Resources" section of the Run Run Shaw Library website
3	Andrew Bruce, S.C. 'Criminal Procedure – Trial on Indictments'
4	Audrey Campbell-Moffat 'Magistrates Court Manual' , Sweet & Maxwell
5	Cross and Cheung 'Sentencing in Hong Kong' , Butterworths